



CHAPTER ccxxiii.

An Act to confer further powers upon the urban district council for the district of East Ham in the county of Essex. A.D. 1903.
[11th August 1903.]

WHEREAS the district of East Ham in the county of Essex (hereinafter referred to as "the district") is an urban district within the meaning of the Public Health Act 1875 and the Local Government Act 1894 and is under the management of the East Ham Urban District Council (hereinafter referred to as "the Council"):

And whereas by the East Ham Improvement Act 1898 (in this Act referred to as "the Act of 1898") powers were conferred upon the Council for the working and in respect of the mode of working the tramways in the district and various provisions were made and further powers given to the Council with respect to the good government and administration of the district: 61 & 62 Vict.
c. cxxiv.

And whereas it has been arranged that a sum of ten thousand pounds shall be paid to the Council by way of donation for the erection of public libraries within the district upon the Council obtaining such powers as may be necessary for the maintenance and management of the libraries to be provided out of such donation:

And whereas the Public Libraries Acts have been adopted by the Council and are applicable to the district:

And whereas the maintenance and management of such libraries may involve the expenditure of a larger annual sum than that which the Council are authorised to raise under the provisions of the Public Libraries Acts and it is expedient that the rate leviable by the Council under those Acts should be increased as in this Act provided:

A.D. 1903.
—

And whereas it is expedient that further borrowing powers be conferred on the Council :

And whereas it is expedient that the other provisions in this Act contained should be made :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

And whereas an estimate has been prepared by the Council for the construction of works by this Act authorised and such estimate is as follows :—

For the street improvements by this Act authorised (including lands) twenty-one thousand pounds :

And whereas the several works included in such estimate are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas an absolute majority of the whole number of the Council at a meeting held on the third day of December one thousand nine hundred and two after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the *East Ham Echo* a newspaper published and circulating in the district (such notice being in addition to the ordinary notices required for summoning such meeting) resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and general district rate :

And whereas such resolution was published twice in the said newspaper and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the twenty-first day of January one thousand nine hundred and three being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas the owners and ratepayers of the district by resolution in the manner provided in the Third Schedule of the Public Health Act 1875 have consented to the promotion of the Bill for this Act :

And whereas plans and sections showing the lines situations and levels of the street improvements by this Act authorised and the lands in or through which they will be made and the lands which may be taken compulsorily under the powers of this Act and a book of reference to those plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of and describing such lands have been deposited with

the clerk of the peace for the county of Essex and are in this Act referred to as the deposited plans sections and book of reference : A.D. 1903.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited for all purposes as the *East Ham Improvement Act 1903.* Short title.

2. The provisions of the Lands Clauses Acts so far as the same are applicable for the purposes of and not varied by or inconsistent with this Act are hereby incorporated with this Act. Incorporation of Acts.

3. In construing this Act the following words and expressions have the meanings hereby assigned to them respectively unless there be something in the subject or context repugnant to such construction (that is to say) :— Interpretation.

“ The district ” means the urban district of East Ham in the county of Essex :

“ The Council ” means the urban district council of the district :

“ The clerk ” “ the surveyor ” “ the treasurer ” “ the medical officer of health ” “ the inspector of nuisances ” mean respectively the clerk the surveyor the treasurer the medical officer of health and the inspector of nuisances for the district and “ office ” in relation to any of the said officers means the office of such officer at the district council office or town hall or at such other place as the Council may appoint :

“ The general district rate ” means the general district rate of the district :

“ The Public Health Acts ” means the Public Health Act 1875 and any Act amending the same or incorporated therewith :

“ Owner ” has the same meaning as it has in the Public Health Act 1875 :

“ Daily penalty ” means a penalty for each day on which an offence is continued after conviction therefor :

“ Statutory borrowing power ” means any power whether or not coupled with a duty of borrowing or continuing on

A.D. 1903.
—

loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government Department made or given or to be made or given by authority of any Act of Parliament passed or to be passed :

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any local authority within the meaning of section 34 of the Local Loans Act 1875 but shall not include annuities rentcharges and securities payable to bearer or any securities of the Council :

“Revenues of the Council” includes the revenues of the Council from time to time arising from any land undertakings or other property for the time being of the Council and rates or contributions leviable by the Council.

The several words and expressions to which meanings are assigned in enactments incorporated with this Act or in the Public Health Acts or which have therein special meanings have in this Act (except where otherwise expressly provided) the same respective meanings unless there be something in the subject or context repugnant to such construction.

PART II.

STREET IMPROVEMENTS.

Power to
execute
street works.

4. Subject to the provisions of this Act the Council in the lines shown on the deposited plans and according to the levels shown upon the deposited sections may make and maintain the street improvements hereinafter described and may enter upon take and use such of the lands delineated upon the deposited plans and described in the deposited book of reference as may be required

[3 EDW. 7.] *East Ham Improvement Act, 1903.* [Ch. ccxxiii.]

therefor or for providing space for the erection of houses and buildings adjoining or near thereto The improvements hereinbefore referred to and authorised by this Act are— A.D. 1903.

Street Widening No. 1 A widening of High Street North on the western side between Salisbury Road and a point 1·50 chains or thereabouts south of Romford Road :

Street Widening No. 2 A widening of High Street North on the eastern side and Warwick Road on the northern side commencing at the southern end of the bridge carrying High Street North over the London Tilbury and Southend Railway and terminating at the south-western corner of the bridge carrying Rixsen Road over that railway :

Street Widening No. 5 A widening of High Street South on the western side between the south-eastern corner of the Central Park Recreation Ground and a point half a chain or thereabouts northward of Rancliffe Road.

5. In making any of the works for or connected with the improvements the Council may subject to the provisions of this Act deviate to any extent from the line thereof within the limits of deviation defined on the deposited plans and the Council may subject to the provisions of this Act deviate to any extent not exceeding two feet from the levels thereof defined on the deposited sections : Deviation from line and levels.

Provided always that as regards the Street Widening No. 2 by this Act authorised the Council shall not take any lands beyond the limit of deviation defined on the deposited plans or make the gradient of the slope from High Street North at the corner of Warwick Road to the goods yard of the railway company less than 1 in 20 The Council shall in making such widenings acquire no right to any lateral support for such widenings above the rail level and in assessing the compensation to be paid to the company for the land taken no allowance shall be made for any such lateral support If the company shall at any time hereafter widen their existing line or the said goods yard so as to interfere with or imperil any of the works of the Council they shall without any claim to compensation afford the Council all necessary facilities for the execution of any further works in the nature of vertical support which may be necessary Should any difference arise between the Council and the company under this proviso such difference shall be referred to arbitration under the Arbitration Act 1889.

A.D. 1903.

Power to
alter steps
areas pipes
&c.

6. The Council within the limits of deviation defined upon the deposited plans may raise sink or otherwise alter or cause to be altered the position of any of the steps areas cellars windows and channels pipes or spouts belonging to any house or building and may remove all other obstructions so as the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit and the provisions of section 308 of the Public Health Act 1875 shall apply as if the acts done under the authority of this section were done in exercise of the powers of that Act.

Power to
certain per-
sons to grant
easements
&c. by agree-
ment.

7. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may (if they think fit) subject to the provisions of the Lands Clauses Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Correction
of errors &c.
in deposited
plans and
book of refe-
rence.

8. If any omission misstatement or erroneous description shall have been made of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Council may after ten days' notice to the owners lessees and occupiers of the lands affected by the proposed correction apply to a court of summary jurisdiction for the correction thereof and if it shall appear to such court that such omission misstatement or erroneous description arose from mistake they shall certify the same accordingly and they shall in such certificate state the particulars of any such omission and in what respect any such matter shall have been misstated or erroneously described and such certificate shall be deposited with the clerk of the peace for the county of Essex and a duplicate thereof shall also be deposited with the clerk of the Council and such certificate and duplicate thereof shall be kept by such clerks respectively along with the other documents to which it relates and thereupon the plans or book of reference shall be deemed to be corrected according to such certificate and the Council may take the lands in accordance with such certificate.

Limitation
of time for
purchase of
lands.

9. The powers of the Council for the compulsory purchase or taking of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

10. The Council shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

A.D. 1903.

Restriction
on taking
houses of
labouring
class.

If the Council acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

11. And whereas in the construction of the improvements by this Act authorised or otherwise in the exercise by the Council of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans may be sufficient for the purposes of the Council and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

Owners may
be required
to sell parts
only of cer-
tain lands
and build-
ings.

(1) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Council or each or any of them are hereinafter included in the term "the owner" and the said properties are hereinafter referred to as "the scheduled properties":

(2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Council that he alleges that such portion cannot be severed

A.D. 1903.

from the remainder of the property without material detriment thereto he may be required to sell and convey to the Council such portion only without the Council being obliged or compellable to purchase the whole the Council paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :

- (3) If within such twenty-one days the owner shall by notice in writing to the Council allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (hereinafter referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Council have compulsory powers of purchase) can be so severed :
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Council the portion which the tribunal shall have determined to be so severable without the Council being obliged or compellable to purchase the whole the Council paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner :
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Council may withdraw

their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice : A.D. 1903.

- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Council in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

PART III.

STREETS AND BUILDINGS.

12.—(1) It shall not be lawful for any person to erect or place a pile stack or store of cut or uncut timber lathwood firewood casks or barrels whether on or above the ground nearer to a street than the buildings forming the general line of buildings therein Timber yards existing on the first day of December one thousand nine hundred and two shall be exempt from the provisions of this subsection. Storing of wood and timber.

(2) It shall not be lawful for any person to pile stack or store cut or uncut timber lathwood firewood casks or barrels in the same yard or ground or in any part of the same premises with any furnace except in the following cases :—

- (A) Where the furnace is enclosed in a building or chamber constructed of fire resisting materials ; or
- (B) Where there is a distance of not less than ten feet between the furnace and the pile stack or store of timber lathwood firewood casks or barrels.

A.D. 1903.

(3) No pile stack or store of timber lathwood firewood casks or barrels shall exceed in height from the level of the ground sixty feet nor in cases where any pile stack or store other than one situate in a yard existing as aforesaid on the said first day of December is situate within fifty feet of any street the horizontal distance of the nearest portion of such pile stack or store from the opposite side of any such street measured at right angles to such street.

(4) It shall not be lawful to form in any pile stack or store of timber lathwood firewood casks or barrels any room or chamber or space (other than a passage) to be used for any purpose whatever.

(5) Any person who acts in contravention of any of the provisions of this section shall be liable for each offence to a penalty not exceeding forty shillings and to a daily penalty not exceeding the like amount.

(6) This section shall not apply to railway companies or canal companies so far as regards timber lathwood firewood casks or barrels in transit or piled stacked or stored on land occupied by them for the purposes of their undertakings nor to timber lathwood firewood casks or barrels piled stacked or stored in or on any yard or other premises occupied by any dock company for the purposes of their undertaking or to any such yard or premises or to any person piling or stacking or storing timber lathwood firewood casks or barrels in or on any such yard or premises.

Flagging
streets.

13.—(1) The owner of every court (including in that word any entry alley passage yard or place used with or appurtenant to one or more dwelling-houses) shall to the reasonable satisfaction of the Council and within such time as they by notice in writing in that behalf require flag or lay with any material or preparation approved by the Council such court or the part thereof of which he is the owner and shall provide such drains or channels at such levels through over or under the same or the said part thereof and shall keep such court or part thereof and the said drains or channels in good repair and cleanse the same to the satisfaction of the Council. In case of any default by the owner in complying with the said notice the Council may execute the necessary work.

(2) Any expenses incurred by the Council under this section may be recovered summarily or may be declared to be private improvement expenses and be recovered as such in manner provided by the Public Health Acts.

14.—(1) The Council may regulate and prescribe the lowest level at which the ground floor of any new building intended for human habitation is to be but except where the land upon which such building is to be erected is liable to floods such prescribed level shall not exceed eighteen inches above the street level adjoining any such new building or eighteen inches above the ground adjoining such building whichever be the greater and in the case of any buildings upon land liable to floods shall not exceed fourteen feet above Ordnance datum and at the time of the deposit of plans and sections of any new building the Council may require any person intending to construct any such new building to specify the proposed level of the ground floor of any such new building Provided that this section shall not apply to any part used as a shop only of the ground floor of any new building but it shall not be lawful to use such part of the ground floor otherwise than as a shop until the same has been raised to such level as the Council may prescribe not exceeding the level aforesaid.

A.D. 1903.
Power to regulate level of ground floor.

(2) If any person shall construct or permit to be constructed the ground floor of any new building at a lower level than the prescribed level he shall be liable to a penalty not exceeding five pounds and the Council may cause such building to be pulled down or removed and may recover summarily the expenses thereby incurred either from the person constructing such building or from the person who permitted the same to be constructed and if any person shall use part of any such ground floor which shall have originally been constructed for use as a shop only for any other purpose than as a shop until the same has been raised to the level prescribed by the Council he shall be liable to a penalty of forty shillings and to a daily penalty of twenty shillings.

15. The Council may require the sewerage levelling paving metalling flagging channelling and making good and lighting of any portion or portions of any street not repairable by the inhabitants at large within the district by and at the cost of the owners or occupiers of the premises fronting adjoining or abutting on such portion or portions of street and the provisions of sections 150 to 152 (both inclusive) of the Public Health Act 1875 shall extend and apply to and in respect of such portion or portions of street accordingly.

Provisions as to making up portions of streets.

16. In cases of streets in the district not being highways repairable by the inhabitants at large but which are open to the public the Council may execute temporary repairs and may erect lamps in and scavenge light and water such streets but the

Temporary repairs to private streets.

A.D. 1903. execution of such repairs or the erection of such lamps in or the scavenging watering or lighting of such streets by the Council under this section shall not be deemed to amount to or be evidence of an adoption by them of any such street or impose upon the Council any liability whatever in respect of such street and the expenses incurred by the Council under this section shall be charged on and defrayed out of the district fund and general district rate.

Saving for railway companies.

17. Nothing in this Part of this Act or in any byelaw made thereunder shall apply to any building or station premises (not being a dwelling-house) belonging to any railway company and used by such company as a part of or in connection with their railway under any Act of Parliament.

PART IV.

POLICE AND SANITARY.

Council may appoint more than one inspector of nuisances.

18. The Council may if they think fit appoint more than one inspector of nuisances and section 189 of the Public Health Act 1875 shall for the purposes of the execution of that Act within the district be construed accordingly and the provisions now in force with respect to the qualification and payment of the inspector of nuisances shall apply to and in respect of any additional persons appointed as inspectors of nuisances under this Act.

Extension of section 41 of Public Health Act 1875.

19. Where two or more houses or other buildings belonging to the same owner or to different owners are connected with a public sewer or cesspool by a single private drain an application may be made under section 41 of the Public Health Act 1875 (relating to complaints as to nuisances from drains) and the Council may recover any expenses incurred by them in executing any works under the powers conferred on them by that section from the owner of the houses or buildings and such expenses may be recovered summarily or may be declared by the Council to be private improvement expenses under the Public Health Acts and may be recovered accordingly.

For the purposes of this section the expression "drain" includes a drain used for the drainage of more than one building whether belonging to one or more owners.

Regulation dust bins.

20. The owner of every dwelling-house may be required by the Council to provide galvanised iron dust bins in lieu of ashpits and such bins shall be of such size and construction as may be prescribed by the Council and any owner who fails within fourteen

days after notice in writing given to him to comply with the requirements of the Council shall for every such offence be subject to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings. Provided that this section shall not apply to any dust bins or ashpits in use at the commencement of this Act so long as the same are of suitable size and in proper order and condition.

A.D. 1903.

21.—(1) Where any inn public-house beer-house eating-house or other place of public entertainment built before or after the passing of this Act has no urinal belonging or attached thereto or has a urinal which in the opinion of the Council is insufficient or is not efficiently drained ventilated or lighted or is otherwise improperly constructed the Council may by notice in writing require the owner of such inn public-house beer-house eating-house or other place of public entertainment to provide and maintain on the premises in a position to be specified in the notice an urinal or urinals to the satisfaction of the Council or to reconstruct enlarge or alter any existing urinal to the like satisfaction. Any person who fails within a reasonable time to comply with a notice under this section shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding ten shillings.

Proper
urinals to
be attached
to refresh-
ment houses
&c.

(2) As from the passing of this Act section 59 of the Act of 1898 shall be and the same is hereby repealed.

(3) This section shall not apply to a refreshment room belonging to a railway company and used in connection with a station.

22. If a watercloset or drain in or in connection with any dwelling-house in the district is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such defective construction or repair was not due to any wilful act neglect or default be liable to a fine not exceeding twenty pounds :

Improper
construction
or repair of
watercloset
or drain.

Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if he proves to the satisfaction of the court that he had used due diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or

A.D. 1903. connivance he shall be exempt from any fine and the said other person may be summarily convicted of the offence.

As to unfenced ground adjoining streets.

23. Any unfenced ground adjoining or abutting upon any street shall for the purposes of the Vagrancy Act 1824 and any Act for the time being in force altering or amending the same be deemed to be a public place.

Betting.

24. Any person who shall frequent and use any street or any open space in the district either on behalf of himself or of any other person for the purpose of bookmaking betting or wagering or agreeing to bet or wager or paying or receiving or settling any bet or wager or receiving or paying any money as or in respect of any bet or wager shall be liable to a penalty not exceeding for the first offence five pounds for the second offence ten pounds and for the third and every subsequent offence fifty pounds.

PART V.

FINANCE.

Power to borrow.

25. The Council may from time to time in addition to any moneys they are now authorised to borrow or which they may be authorised to borrow under the provisions of the Act of 1898 the Public Health Acts or any public general Act borrow at interest on the security of the district fund and general district rate for the following purposes the following sums (that is to say):—

(A) For paying the costs charges and expenses of and in relation to this Act as hereinafter defined the sum requisite for the purpose :

(B) For the street improvements by this Act authorised (including lands) any sum not exceeding twenty-one thousand pounds :

(c) For the other purposes of this Act such sum or sums as the Local Government Board may sanction :

And in calculating the sums which the Council may borrow under the provisions of any other enactment any sums they may borrow under this Act shall not be reckoned and the powers of the Council as to borrowing and re-borrowing shall not be restricted by any of the provisions of the Public Health Acts.

Power to borrow under Local Loans Act 1875.

26. The Council if they think fit may borrow the moneys which they are by this Act authorised to borrow or any part thereof under the powers and subject to the provisions of the Local Loans Act 1875 by means of a loan or loans to be raised by the

issue of debentures or annuity certificates or partly in one way and partly in another. A.D. 1903.

Every such loan shall be discharged within the prescribed period and where any such loan is made repayable by means of a sinking fund the provisions of the section of this Act whereof the marginal note is "Mode of payment off of moneys borrowed" shall apply to such sinking fund in lieu of the provisions of section 15 of the Local Loans Act 1875.

27. The following sections of the Public Health Act 1875 shall extend and apply to mortgages granted under this Act (that is to say):—

Provisions of Public Health Act as to mortgages to apply.

Section 236 (Form of mortgage);

Section 237 (Register of mortgages);

Section 238 (Transfer of mortgages);

Section 239 (Receiver may be appointed in certain cases).

28. All moneys borrowed by the Council under the authority of this Act for the purposes respectively mentioned in the subsections of the section of this Act of which the marginal note is "Power to borrow" shall be repaid within any periods not exceeding the periods hereinafter respectively mentioned from the respective dates of the borrowing of such moneys respectively (which periods are in this Act referred to as "the prescribed period") (that is to say):—

As to repayment of borrowed money.

For the purposes of subsection (A) five years;

For the purposes of subsection (B) fifty years;

For the purposes of subsection (C) such period or periods as the Local Government Board may sanction.

29.—(1) The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly in one of those methods and partly in another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year after the date of borrowing the sum in respect of which the payment is made.

Mode of payment off of moneys borrowed.

(2) The following provisions shall apply in regard to any sinking fund to be formed under this Act:—

(A) The Council shall in every year appropriate and set apart out of the district fund and general district rate such equal annual sums as will with the accumulations thereof by way of compound interest at a rate not exceeding three pounds per centum per annum (hereinafter in this section

A.D. 1903.

referred to as "the prescribed rate") be sufficient to pay off the principal moneys borrowed (so far as the same are repayable by means of a sinking fund) within the prescribed period :

- (B) The yearly sums so appropriated and set apart shall be invested from time to time and accumulated by way of compound interest by investing the same and the dividends interest and annual income thereof respectively in statutory securities and if and as often as the income derived from such investments is not equal to the income which would be derived therefrom at the prescribed rate any deficiency shall be made good out of the district fund and the general district rate and if and so often as the income derived from such investments is in excess of the income which would be derived therefrom at the prescribed rate any such excess may be applied as part of such equal annual payments :
- (c) The Council may at any time apply the whole or part of the sinking fund in or towards the repayment of the borrowed moneys for the repayment of which it was set aside in such order and manner as they deem proper Provided that in such case they pay into such sinking fund in each year afterwards and accumulate as hereinbefore prescribed until the whole of such borrowed moneys are discharged a sum equal to the interest produced by the sinking fund or part thereof so applied at the rate per centum on which the equal annual payments to the sinking fund are based :
- (D) Whenever and so long as the value of the securities standing to the credit of the sinking fund taken at the market price of the day shall be equal to the amount of the borrowed moneys then outstanding for the repayment of which it was set aside the Council may in lieu of investing the yearly income of such fund apply the same in payment of interest on moneys in respect of which the fund was set aside and may during such periods discontinue the payment to the sinking fund of the yearly sums required to be paid thereto :
- (E) The Council may make the payments to any sinking fund under this section at the end of each half year in lieu of making such payments annually.

Power to
re-borrow.

30.—(1) The Council shall except as hereinafter provided have power to re-borrow for the purpose of paying off any moneys borrowed or re-borrowed by virtue of this Act which have not been

repaid and are intended to be forthwith repaid or in respect of any moneys which have been repaid by the temporary application of funds at the disposal of the Council within six months before the re-borrowing and which at the time of the repayment it was intended to re-borrow. A.D. 1903.

(2) The Council shall not have power to re-borrow for the purpose of paying off any moneys repaid by instalments appropriations or annual repayments or by means of a sinking fund or out of the proceeds of the sale of land or other property or out of fines or premiums on leases or out of moneys received on capital account properly applicable to the purpose of repayment other than moneys borrowed for that purpose. Any moneys re-borrowed shall be deemed to form the same loan as the moneys originally borrowed and the obligations of the Council with respect to the repayment shall not be diminished by reason of such re-borrowing.

31.—(1) The Council may at any time make a scheme for prescribing one or more uniform periods within which all or any loans contracted by them under statutory borrowing powers shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may make provision in regard to all matters incidental thereto. Scheme for fixing equated periods.

(2) No scheme made by the Council under this section shall have any force or effect until confirmed by the Local Government Board who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the powers of this Act. Provided that nothing in any scheme made under this section shall prejudice or affect the security rights and remedies of any mortgagee under any mortgage or the holder of any other security of the Council existing at the time of the confirmation of the scheme except with the consent of such mortgagee or holder.

(3) Any scheme confirmed under this Act may be altered extended amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

32. If the Council out of the proceeds of the sale or disposition of lands or other moneys received on capital account repay any principal moneys borrowed under the powers of this Act the payments to any sinking fund applicable to the repayment of such principal moneys may be reduced to such extent and upon such terms as may from time to time be approved by the Local Government Board. Sinking fund may be adjusted in certain events.

A.D. 1903.

Protection
of lender
from inquiry.

33. A person lending money to the Council under this Act shall not be bound to inquire as to the observance by them of any provisions of this Act or be bound to see to the application or be answerable for any loss or non-application of the money lent or of any part thereof.

Application
of moneys
borrowed.

34. Moneys borrowed or raised by the Council under this Act shall be applied only to the several purposes in respect of which they were respectively authorised to be borrowed or raised and to which capital is properly applicable.

Proceeds of
sale of lands
to be treated
as capital.

35. The proceeds of the sale of any lands of the Council under the powers of this Act shall be distinguished as capital in the accounts of the Council and shall be applied in discharge of any moneys borrowed by the Council under this Act or other moneys borrowed by the Council but shall not be applied to the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board. Provided that borrowed money discharged by the application of such moneys shall not be re-borrowed.

Annual
return to
Local Go-
vernment
Board.

36.—(1) The treasurer shall within forty-two days after the thirty-first day of March in each year during which any sum is required to be set apart for a sinking fund or any instalment is required to be paid under this Act or the Act of 1898 transmit to the Local Government Board a return in such form as may be prescribed by that Board and verified by statutory declaration if so required by them showing the amount which has been paid as an instalment or invested for the purpose of such sinking fund during the year preceding the making of such return and the description of the securities upon which the same has been invested and also showing the purposes to which any portion of the moneys invested for the sinking fund and the interest thereof have been applied during the same period and the total amount remaining invested at the end of the year and in the event of any wilful default in making such return the treasurer shall be liable to a penalty not exceeding twenty pounds which shall be paid to the Local Government Board and shall be recoverable by that Board in the same manner as penalties recoverable under the Public Health Acts in a summary manner may be recovered by parties aggrieved within the meaning of those Acts. If it appear to the Local Government Board by such return or otherwise that the Council have failed to pay any instalment or to set apart the sum required by this Act or by the Act of 1898 for the sinking fund or have applied any portion of the money set apart for that fund or any

interest thereof to any purposes other than those authorised by this Act or the Act of 1898 as the case may be the Local Government Board may by order direct that a sum not exceeding double the amount in respect of which such default shall have been made shall be set apart and invested as part of the sinking fund and such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court and the provisions of this section shall apply mutatis mutandis to appropriations and annual repayments. A.D. 1903.

(2) As from the passing of this Act section 93 of the Act of 1898 shall be and the same is hereby repealed.

37. If any money is payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Council. Receipt in case of persons not sui juris.

38.—(1) Where the Council have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section. Power to use one form of mortgage for all purposes.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the corporate seal of the Council and may be made in the form contained in the Second Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever and shall also rank equally with stock issued by the Council and with all other securities granted by the Council at any time after the date of the first creation of such stock.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Council.

(5) Nothing in this section contained shall alter or affect the obligations of the Council to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would

A.D. 1903. have been repayable respectively if this section had not been enacted.

(6) There shall be kept at the office of the Council a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said office without fee or reward and the clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(7) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Second Schedule to this Act or to the like effect.

(8) There shall be kept at the office of the Council a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Council shall not be in any manner responsible to the transferee.

(9) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any money secured thereby.

(10) If the clerk or other the person having the custody of the register wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

Altering
date for fill-
ing up annual
accounts for
electric light-
ing.

39. Notwithstanding anything in section 9 of the Electric Lighting Act 1882 contained the annual statement of accounts of the electric lighting undertaking of the Council shall after the passing of this Act be filled up on or before the twenty-fourth day of June in every year and shall be made up to the thirty-first day

of March next preceding and section 9 of the Electric Lighting Act 1882 shall as from the passing of this Act be read and have effect as regards the undertaking of the Council as if the twenty-fourth day of June and the thirty-first day of March were therein mentioned instead of the twenty-fifth day of March and the thirty-first day of December. A.D. 1903.

40. The Council may apportion the cost of constructing the tramways in the district and the paving and other subsidiary works in connection therewith or contingent thereon between the tramways account and the highways account in such a manner as may appear to them fair and equitable. Apportionment of cost of constructing tramways &c.

41. Nothing in this Act shall prejudicially affect any charge on the revenue and rates or the estate and property of the Council subsisting at the passing of this Act and every mortgagee or person for the time being entitled to the benefit of any such charge shall have the same priority of charge and all the like rights and remedies in respect of the revenue rate and property subject to his charge as if this Act had not been passed and all such charges created before the passing of this Act shall during the subsistence thereof have priority over any mortgage or charge granted under this Act on the same revenue rate and property. Saving for existing charges.

42. Any expenses of the execution by the Council of this Act with respect to which no other provision is made may be defrayed by the Council out of the district fund or general district rate. Expenses of execution of Act not otherwise provided for.

PART VI.

MISCELLANEOUS.

43. Notwithstanding anything in the Public Libraries Acts 1892 to 1901 the rate or addition to a rate for the purposes of those Acts in the district for any one financial year may amount to but shall not exceed one penny and a halfpenny in the pound. Rate for public libraries.

44.—(1) If the Council are required by the owner or occupier of any premises to remove any trade refuse or manure they shall do so and the owner or occupier making such requisition shall pay to the Council a reasonable sum for such removal and such sum in case of dispute shall be settled by the order of a petty sessional court. Removal of trade refuse and manure.

(2) If any dispute or difference of opinion arises between the owner or occupier and the Council as to what is to be considered as trade refuse a court of summary jurisdiction on complaint made by

A.D. 1903. — either party may by order determine whether the subject-matter of dispute is or is not trade refuse.

Assistants
to overseers.

45. The Council may appoint and remove such officers as they may deem necessary to assist the overseers of the parish of East Ham in the discharge of their duties and the salaries and expenses of such officers shall be determined by the Council and paid out of the poor rate and other local rates and funds in such proportions as the Council shall determine.

Power to
grant gra-
tuities in cer-
tain cases.

46.—(1) The Council may if they think fit grant a gratuity of any sum (not exceeding one year's pay) to any of their servants who may be disabled or injured in their service or to the widow or family of any such servant who may die through accident occurring whilst engaged in such service.

(2) Every such gratuity shall be charged on and paid out of the fund or funds on which the wages or emoluments of such servant would have been charged or paid if he had continued in his service.

Power to
run omni-
buses.

47. The Council may provide and run omnibuses from the termination of the Council's tramways at Cyprus to the free ferry of the London County Council at North Woolwich and also within the district in connection with any of their tramways when the running of carriages thereon is impracticable or during the construction reconstruction alteration or repair thereof or in extension of any of their tramways or for the purpose of connecting together any of such tramways and also for testing the amount of traffic along any route or between any particular points and may make charges for the use of such omnibuses and may provide hire and maintain all necessary plant for the purposes aforesaid and may dispose of such plant as may become unnecessary.

Recovery of
penalties.

48. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Damages
and charges
to be settled
by justices.

49. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses costs or charges in case of dispute respecting the same may be settled and determined by the court of summary jurisdiction before whom any offender is convicted.

50. All penalties recovered under this Act by the Council or by any officer of the Council on their behalf shall be paid to the treasurer and carried by him to the credit of the district fund.

A.D. 1903.
Penalties to be paid over to treasurer.

51. Proceedings for the recovery of any sums not exceeding fifty pounds demanded under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court.

Recovery of sums under fifty pounds.

52. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence or consent or approval of or by the Council or of or by any officer of the Council or by any conviction or order made by a court of summary jurisdiction under any provision of this Act may if no other mode of appeal is provided by this Act or by any other Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order made by a court of summary jurisdiction the Council may in like manner appeal.

As to appeal.

53.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

Inquiries by Local Government Board.

(2) The Council shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

54. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown.

Crown rights.

55. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or the House of Commons shall be paid by the Council.

Costs of Act.

A.D. 1903. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

DESCRIPTION OF PROPERTIES WHEREOF PARTS ONLY ARE PROPOSED
TO BE TAKEN FOR PURPOSES OF ACT.

Parish.					No. on deposited Plans.			
East Ham	-	-	-	-	30	31	32	34.

THE SECOND SCHEDULE.

FORM OF MORTGAGE.

By virtue of the East Ham Improvement Act 1903 and of other their powers in that behalf them enabling the urban district council of the urban district of East Ham (hereinafter called "the Council") in consideration of the sum of _____ pounds paid to the treasurer of the district by

(hereinafter called "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Council in the said Act defined as the said sum so paid doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the said sum of _____

pounds shall be fully paid and satisfied with interest for the same (subject as hereinafter provided) at the rate of _____ per centum per annum from the

day of _____ one thousand nine hundred and _____ until payment of the said principal sum such interest to be paid half-yearly on the _____ day of _____ and the _____ day of _____ in each year

And it is hereby agreed that the said principal sum of _____ pounds shall be repaid at the office of the treasurer in the said district [(subject as hereinafter provided) on the _____ day of _____ one thousand nine hundred and _____]:

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may

[3 EDW. 7.] *East Ham Improvement Act, 1903.* [Ch. ccxxiii.]

be altered to such other rate or rates of interest as shall from time to time be mentioned and specified in an endorsement to be made hereon under the hands of the chairman and clerk of the said district for the time being respectively and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein In witness whereof the Council have caused their corporate seal to be hereunto affixed this

A.D. 1903.

day of
one thousand nine hundred and

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named consenting the within-mentioned time for repayment of the within-mentioned principal sum of is hereby extended to the day of one thousand nine hundred and [and the interest to be paid thereon on and from the day of one thousand nine hundred and is hereby declared to be at the rate of per centum per annum] Dated this day of one thousand nine hundred and

FORM OF TRANSFER OF MORTGAGE.

I [the within-named] [of] in consideration of the sum of pounds paid to me by of (hereinafter called "the transferee") do hereby transfer to the transferee [his] executors administrators and assigns [the within-written security] [the mortgage number of the revenues of the Council of the urban district of East Ham bearing date the day of] and all my right and interest under the same subject to the several conditions on which I hold the same at the time of the execution hereof and I the transferee for myself my executors administrators and assigns do hereby agree to take the said mortgage security subject to the same conditions Dated this day of one thousand nine hundred and

Printed by EYRE and SPOTTISWOODE,

FOR

T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
EYRE AND SPOTTISWOODE, EAST HARDING STREET, FLEET STREET, E.C.; or
OLIVER AND BOYD, EDINBURGH; or
E. PONSONBY, 110, GRAFTON STREET, DUBLIN.